

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT,

RESPONDENT.

**ERRATA TO COMPLAINANT’S MEMORANDUM REGARDING THE PROTECTION
OF INADVERTENTLY PRODUCED PRIVILEGED DOCUMENTS**

Samsung Electronics America, Inc. (“SEA”), by and through its undersigned counsel, respectfully submits this Errata to correct two citations in its Memorandum Regarding the Protection of Inadvertently Produced Privileged Documents filed on Friday, May 22, 2026 (“Memorandum”) Dkt. 56. Counsel for HMM contacted counsel for SEA today, May 29, 2026, stating, “Page 9 of the Briefs includes a pin-point citation as follows: “(citing *United States v. Am. Tel. & Tel. Co.*, 642 F.2d 1285, 1298-99 (D.C. Cir. 1980) (“[A] corporate client includes not only the corporation ... but also parent, subsidiary, and affiliate corporations.”)”. The quoted language does not appear in the case cited by SEA.”

HMM is correct. In meeting the midnight deadline to file its Memorandum and condensing the brief to meet the page limitations, SEA inadvertently condensed multiple citations which

resulted in an incorrect citation sentence. When citing to a direct quotation in *United States v. Am. Tel. & Tel. Co.*, SEA cited the incorrect decision from that case; SEA meant to cite *United States v. Am. Tel. & Tel. Co.*, 86 F.R.D. 603, 615 (D.D.C. 1979), and instead cited *United States v. Am. Tel. & Tel. Co.*, 642 F.2d 1285, 1298-99 (D.C. Cir. 1980). We appreciate counsel for HMM bringing this to our attention today and regret the citation error for the Presiding Officer when reviewing our brief. The corrected citation reads as follows:

Holland v. Island Creek Corp., 885 F. Supp. 4, 7¹ (D.D.C. 1995) (holding entities shared a common interest and that, although litigation was not pending, disclosure was made “with an eye toward litigation”) (internal citation omitted); *see also United States v. Am. Tel. & Tel. Co.*, 86 F.R.D. 603, 615 (D.D.C. 1979) (“[A] corporate ‘client’ includes not only the corporation . . . but also parent, subsidiary, and affiliate corporations.”).

The corrected citation changes “citing” to “see also” and the proper case citation; the parenthetical quotation itself adds internal quotation marks where they were previously omitted but is otherwise unchanged.

Dated: May 29, 2026

Respectfully Submitted,

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¹ We self-correct this pinpoint citation; the quoted language is on page 7 as opposed to page 6 referenced in the May 22 brief.

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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